

DATA TRANSFER AGREEMENT

This Agreement is entered into between the Parties to govern the mutual transfer of the Data from Disclosing Party to Receiving Party.

This Agreement is made by and between:

University of Auckland, through its **AUCKLAND BIOENGINEERING INSTITUTE** ("Collaborator")
with address at: 22 Princes Street, Auckland, New Zealand

Contact information for administration:

Physical Address: 22 Princes Street, Auckland 1010, New Zealand
Postal Address: Private Bag 92019, Auckland 1142, New Zealand
Email: contracts@auckland.ac.nz

and

[REDACTED] with an address at 22 Princes Street, Auckland 1010, New Zealand ("**Collaborating Investigator**")

and

[REDACTED] ("**[REDACTED]**")

Contact information for administration

[REDACTED]

and

[REDACTED], who holds an appointment at [REDACTED] with an address at [REDACTED] ("**[REDACTED] Investigator**")

This Agreement is made pursuant to sections 44(5) and 44(6) of PHIPA.

[REDACTED]

WHEREAS, the Parties wish to transfer Data for the purposes of the Study;

NOW THEREFORE, in consideration of the mutual covenants and agreements exchanged between the Parties and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

1. **Definitions.** As used in this Agreement, the term:

- a) "Applicable Law" means all applicable laws, regulations, guidelines and policies, including PHIPA and PIPEDA;
- b) "Data" means all data that has been collected for the purpose of the Study pursuant to the Protocol by the Disclosing Party and is provided to the Receiving Party for the purpose of carrying out the Study;
- c) "Disclosing Party" means the party or parties disclosing information under this Agreement, [REDACTED];
- d) "Effective Date" means the date of the last signature on the signature page of this Agreement;
- e) "Parties" means Collaborator, Collaborating Investigator, [REDACTED] and [REDACTED] Investigator collectively;
- f) "Party" means either Collaborator, Collaborating Investigator, [REDACTED] or [REDACTED] Investigator
- g) "PHIPA" means *Personal Health Information Protection Act*, 2004, S.O. 2004, c. 3;
- h) "PHI" means "personal health information" as defined in PHIPA or "personal information" as defined in PIPEDA;
- i) "PIPEDA" means *Personal Information Protection and Electronic Documents Act* (S.C. 2000, c. 5);
- j) "Protocol" means all documents, including any protocols and informed consent forms, including any research plans that meet the requirements outlined in PHIPA, as approved by the REB attached by reference at Schedule "A" herein;
- k) "REB" means research ethics board(s) authorized to approve the transfer of Data for research purposes;
- l) "Receiving Party" means the party or parties receiving information under this Agreement, specifically Collaborator;
- m) "Study" means "[REDACTED]
[REDACTED]" as described by the Protocol and as approved by all applicable REBs; and
- n) "Study Staff" means internal personnel and/or agents of each Party who need access to the Data for the purposes herein and who are bound by the same confidentiality obligations herein.

2. **Compliance.** The Disclosing Party wishes to share Data for the above-referenced Study. In transferring the Data, the Parties shall comply with all Applicable Laws. The Disclosing Party represents that it has authorization to enter into and transfer the Data under Applicable Law. The Disclosing Party will prepare and furnish the Data in accordance with the Protocol including without limitation obtaining all applicable and appropriate consents. The parties hereto shall use a secure method of provision of the Data by Disclosing Party to Receiving Party in compliance with Applicable Laws. The Data will not be transferred until the Disclosing Party's REB and, if applicable the Receiving Party's REB, have approved the Protocol. The Disclosing Party retains the right to conduct audits of Receiving Party's compliance with this Agreement upon reasonable advance written notice to Receiving Party and at mutually acceptable times. If there is a breach of the Agreement by Receiving Party, Receiving Party shall promptly provide notice to Disclosing Party. Disclosing Party may require that all Data be returned promptly to Disclosing Party or destroyed in a secure manner, at Disclosing Party's option. The Disclosing Party retains the right, acting on reasonable grounds, to refuse the transfer of the Data requested hereunder. Where applicable, the Data will not be transferred until the Receiving Party provides evidence that the Receiving Party's REB has approved the Protocol as attached in Schedule A.

3. **Non-Disclosure of Data.** The Receiving Party shall limit access to the Data only to its Study Staff. The Receiving Party agrees that it/he/she shall, and shall require its/his/her Study Staff, to:
- a) maintain Data in confidence, and not disclose Data except as permitted by this Agreement and the Protocol;
 - b) use Data solely for the purposes of the Study or other expressly consented purposes, in compliance with Applicable Law and with:
 - (i) the Protocol as approved by the REB and as amended from time to time, provided that amendments are approved by the REB;
 - (ii) any written conditions imposed by the Disclosing Party's or Receiving Party's REB;
 - (iii) the Study subject's consent consistent as approved by the Disclosing Party's REB or, if the requirement to obtain consent has been waived, or otherwise determined to be unnecessary, by the Disclosing Party's REB, the waiver of consent given by the Disclosing Party's REB;
 - (iv) any other conditions or restrictions imposed by Disclosing Party relating to the use, security, disclosure, return or disposal of the Data as set out in this Agreement.
 - c) not disclose, transfer, update, distribute, market, sell, or make any other use of the Data to any third parties without the prior written consent of the Disclosing Party. Notwithstanding the foregoing, the Receiving Party may transfer the Data:
 - (i) to regulatory authorities, provided that the Receiving Party gives prior written notice of such intended disclosure to the Disclosing Party;
 - (ii) as otherwise permitted by the informed consent form or waiver of consent; or
 - (iii) in order to comply with Applicable Law or judicial process, or with a court or regulatory order, provided that the Receiving Party gives prior written notice of such intended disclosure to the Disclosing Party and takes all lawful actions that are reasonable in the circumstances to minimize the extent of such disclosure and obtain confidential treatment for such disclosure.
 - d) securely destroy the Data as required by the Protocol or instructed by the Disclosing Party and provide a written confirmation of the manner of destruction in a form acceptable to Disclosing Party; and/or,
 - e) in the event that the Receiving Party retains a third party to house or maintain the database or otherwise transfers the Data to a third party, that Receiving Party will ensure that any such third party is contractually bound by obligations of patient confidentiality, privacy, security and non-use with respect to the Data no less stringent than those contained herein.
4. **Safeguards and Notification.** The Receiving Party shall use appropriate safeguards, but no less stringent safeguards that Receiving Party employs to protect its own confidential and proprietary information (including without limitation with respect to encrypting identifying numbers, linking files, storing and retrieving files from secured locations) to prevent any unauthorized use or disclosure of the Data and shall promptly report to Disclosing Party any unauthorized use or disclosure of which Receiving Party becomes aware. Such safeguards and protections shall be used by Receiving Party for all Data received from Disclosing Party. The above shall apply to any copies of the Data made by the Disclosing Party and kept at their premises. All PHI transferred or exchanged under this Agreement shall be done so in accordance with Schedule "B" herein. Receiving Party shall take appropriate care in the disposal or destruction of the information to prevent unauthorized parties from gaining access to it. The Parties shall make their employees and agents aware of the importance of maintaining the confidentiality of any collected or transferred PHI. These obligations of confidentiality shall survive the expiration or earlier termination of this Agreement.
5. **Contact with Subjects/Individuals.** The Receiving Party shall not make contact or attempt to make contact with an individual or Study subject unless the Disclosing Party first obtains the individual's consent or Study subject's consent to be contacted, except to the extent that the Receiving Party is otherwise the individual's or Study subject's health information custodian.

6. **Intellectual Property/Ownership.** Except as expressly provided herein, no right, title or interest in and to the Data is granted to the Receiving Party or implied hereunder. The Receiving Party hereby specifically disclaims any right, title or interest of any kind whatsoever to the Data, results, and any discovery or invention arising out of the Study (as applicable). Patient medical records shall remain at all times the property of the Disclosing Party.
7. **Funding.** Not Applicable
8. **Publication.** Receiving Party shall have the right to use a) the analyzed, de-identified data derived from the use of the Data; and b) information and results arising out of analysis of the Data, as part of a publication or presentation of the results of the Study. The Receiving Party shall not include any personally identifying information in any publication or presentation. Disclosing Party's contribution to the Study shall be acknowledged appropriately in any such publication or presentation in accordance with academic standards. Prior written consent shall be obtained by the Disclosing Party before any such publication or presentation. As applicable, Receiving Party agrees to share the Data and results arising from its analysis of the Data with Disclosing Party, which Disclosing Party may use for academic research, teaching and scientific and academic publications purposes. The Parties agree that raw level Data may be published in accordance with funding or publication requirements.
9. **Obligations/Liability:** Each party shall be responsible and assume liability for any damage or loss to the extent that such damage or loss arises out of or as a result of its own negligence or willful misconduct or the negligence or willful misconduct of those for whom in law it/he/she is responsible. No Party or its trustees, directors, officers, employees, and agents (the "First Party") shall be liable to any other Party (the "Second Party") for any costs, suits, or claims made by the Second Party or made against the Second Party except to the extent caused by negligence or willful misconduct on the part of the First Party. The Parties shall maintain reasonable insurance coverage for such liabilities. No Party shall be responsible for any lost profits, lost opportunities, or other indirect or consequential damages suffered by another Party.
10. **General Terms and Conditions.**
- a) **Term:** This Agreement shall become effective as of the Effective Date and shall expire upon termination or upon earlier completion of the Study. The term of this Agreement may be amended by an Amendment Document, agreed to and signed by all Parties.
- b) **No Warranty:** Data is provided on an "as-is" basis and Disclosing Party makes no representations or warranties, express or implied, with respect thereto. Receiving Party accepts that there are no representations, warranties, conditions or liabilities expressed or implied herewith in relation to the Data by Disclosing Party or their respective trustees, directors, officers, affiliates, investigators, students, employees, servants, authorized representatives or agents.
- c) **Assignment:** This Agreement shall enure to the benefit of and be binding upon the Parties and their respective successors and permitted assigns. No party shall be entitled to assign or transfer this Agreement or the rights and obligations hereunder to any third party without the prior written approval of the other Parties.
- d) **Entire Agreement:** This Agreement including the attached Schedule(s) represents the entire Agreement between or among the Parties related to the Study and supersedes all previously or contemporaneously executed agreements related to the Study. If there are any conflicts between the terms of the Protocol and the terms of this Agreement, the terms of the Protocol will govern with respect to scientific and medical matters, and the terms of this Agreement will govern with respect to all other matters.

- e) **Amendments:** This Agreement shall not be amended, modified, varied or supplemented except in writing signed by each of the Parties.
- f) **Delays:** No failure or delay on the part of any party hereto to exercise any right or remedy under this Agreement shall be construed or operate as a waiver thereof.
- g) **Independent Contractors:** The Parties hereto are independent contractors. Nothing contained herein shall be deemed or construed to create between or among the Parties hereto a partnership or joint venture or employment or principal-agent relationship. No party shall have the authority to act on behalf of any other party or to bind another party in any manner.
- h) **Use of Name/Symbols:** No party shall use, or authorize others to use, the name, symbols, or marks of another party hereto or its staff for any endorsement purposes without prior written approval from the party whose name, symbols or marks are to be used.
- i) **Governing Law:** This Agreement shall be governed, construed and interpreted pursuant to and in accordance with the laws of the Province of Ontario, and the laws of Canada applicable to the Province of Ontario. The provincial or federal courts having jurisdiction in Canada shall have exclusive jurisdiction over all matters pertaining to this Agreement.
- j) **Force Majeure Clause:** Noncompliance by a party with the obligations of this Agreement due to force majeure, including laws or regulations of any government, war, civil commotion, destruction of production facilities and materials, fire, flood, earthquake or storm, labor disturbances, shortage of materials, disease, epidemic, public health crisis, failure of public utilities or common carriers, or any other causes beyond the reasonable control of the applicable party, shall not constitute breach of this Agreement and such party shall be excused from performance hereunder to the extent and for the duration of such prevention, provided it first notifies the other Parties in writing of such prevention and that it uses reasonable efforts to cause the event of the force majeure to terminate, be cured or otherwise ended.
- k) **Counterparts:** This Agreement may be executed by way of electronic signature and in any number of counterparts with the same effect as if all Parties had signed the same document. All of these counterparts will for all purposes constitute one Agreement, binding on the Parties, notwithstanding that all Parties are not signatories to the same counterpart. A faxed or emailed PDF copy or photocopy of this Agreement executed by a party in counterpart or otherwise will constitute a properly executed, delivered and binding agreement or counterpart of the executing party.
- l) **Termination:** The Parties may terminate this Agreement by providing thirty (30) days prior written notice to the other Parties.
- m) **Dispute Resolution:** The Parties shall make reasonable efforts to amicably resolve any issues, claims, disputes, controversy or inconsistencies involving this agreement or the protocol and to escalate the matter to senior management prior to the commencement of any legal proceedings.
- n) **Third Party Beneficiaries:** The Parties acknowledge that [REDACTED] is a third party beneficiary to this Agreement with respect to any personal health information, as defined in PHIPA, that is disclosed by [REDACTED] and as such may enforce any rights designated to [REDACTED] in this Agreement.

IN WITNESS WHEREOF, each of the Parties has caused this Agreement to be executed as follows:

-(SIGNATURE PAGE FOLLOWS)-

SCHEDULE “B”

PRIVACY ADDENDUM FOR TRANSFER OF PHI

1. **Prevailing Terms.** In case of a conflict between the terms of this Schedule “B” and any other terms of this Agreement, the terms of this Schedule “B” shall prevail. Any undefined terms shall have the same meaning as in the Agreement.
2. **DISCLOSING PARTY subject to PHIPA.** DISCLOSING PARTY is, as defined in PHIPA, a “health information custodian” and/or “agent” and has statutory obligations to safeguard its patients’ PHI.
3. **Receiving Party May Obtain Access to PHI.** It is anticipated that Receiving Party may require access to PHI from the DISCLOSING PARTY in the course of fulfilling its obligations under this Agreement. If the Receiving Party does obtain access to PHI while fulfilling the Agreement, the provisions set in this Schedule “B” set out the obligations of the Receiving Party with respect to its collection, use, disclosure, retention and disposal of such PHI.
4. **Receiving Party obligations under PHIPA.** The parties acknowledge and agree that Receiving Party, when accessing PHI, and where applicable, does so solely with the explicit permission from the DISCLOSING PARTY’s Study Participants to enable the DISCLOSING PARTY to fulfill its obligations under this Agreement. As such, the Receiving Party is a health information agent and is thus subject to all provisions of and obligations under PHIPA.
5. **Use of PHI.** The Receiving Party shall use the PHI provided by the DISCLOSING PARTY for the sole and exclusive purpose of fulfilling its obligations under this Agreement and in accordance with the informed consent form, if applicable, and for no other purpose whatsoever.
6. **Obligations not Conditional.** The Receiving Party’s obligations under this Schedule “B” stem from the obligations of both the DISCLOSING PARTY and the Receiving Party under PHIPA, and in light of the foregoing, are not conditional on the DISCLOSING PARTY’s compliance with any of its obligations under this Agreement, including any obligation to pay the Receiving Party, provided that for greater certainty these obligations shall only apply to the extent that the Receiving Party has custody or control of personal information or PHI under this Agreement.
7. **Receiving Party Personnel.** For the purposes of these Information Privacy and Security terms and conditions, “*Personnel*” includes Receiving Party’s investigators, employees, consultants, subconsultants, and agents.
8. **Training of Personnel.** Receiving Party represents and warrants to the DISCLOSING PARTY that it has provided training to its Personnel with respect to Receiving Party’s legal obligations respecting personal information under all applicable privacy legislation and will provide reasonably sufficient additional training with respect to Receiving Party’s specific obligations to protect PHI under this Agreement. Receiving Party shall ensure that its Personnel are aware of and agree in writing to be bound by the provisions relating to PHI that are set out in this Agreement.
9. **Access by Personnel.** Receiving Party shall give access to PHI only to those members of its Personnel who have a legitimate need to access the PHI in order to fulfill Receiving Party’s obligations under this Agreement.
10. **Removal of Personnel.** In the event of a breach of these provisions by any of its Personnel, the DISCLOSING PARTY may require that personnel member to cease, and such member shall cease, providing Service under this Agreement.

11. **Compliance with Privacy Legislation.** Receiving Party represents and warrants to the DISCLOSING PARTY that it:

- a. has a privacy policy in compliance with applicable privacy legislation, addressing its practices relating to the collection, use, disclosure, retention and disposal of personal information;
- b. shall monitor and enforce compliance with its own privacy policy;
- c. has an appointed privacy compliance officer who shall be given the responsibility for Receiving Party's compliance with the terms and conditions under this Agreement; and
- d. has implemented effective administrative, technological and physical safeguards to stop theft, loss and unauthorized access, copying, modification, use, disclosure or disposal of personal information and that such safeguards are consistent with industry practice.

12. **Transfer and Storage.** The DISCLOSING PARTY shall provide Receiving Party access to or otherwise disclose the PHI in a secure method approved by the DISCLOSING PARTY. Receiving Party states that it shall only store the PHI provided by the DISCLOSING PARTY in a manner and location approved by the DISCLOSING PARTY. All PHI shall be stored in Canada.

13. **Monitoring of its Activities.** Receiving Party agrees that it shall monitor its activities to ensure that its Personnel are complying with the terms and conditions of this Agreement. In particular, Receiving Party shall monitor and report to DISCLOSING PARTY, upon the reasonable request of the DISCLOSING PARTY, Receiving Party's access, use and disclosure of PHI under this Agreement.

14. **Theft, Loss or Unauthorized Access of PHI.** In the event that the Receiving Party becomes aware that PHI has been stolen or lost, or a person has obtained unauthorized access to PHI, or Receiving Party has used, disclosed or disposed of the PHI other than as contemplated in this Agreement, Receiving Party shall promptly notify the DISCLOSING PARTY's contact as stipulated under the Agreement, and shall not otherwise disclose to any third party such circumstances without the prior written consent of the DISCLOSING PARTY except as required by law.

15. **DISCLOSING PARTY's Review of Receiving Party's Practices and Procedures.** The DISCLOSING PARTY may, upon reasonable notice, assess and review Receiving Party's practices and procedures for receiving and processing PHI under this Agreement, for the purposes of ensuring that the terms and conditions are being complied with. For these purposes, upon request Receiving Party shall provide the DISCLOSING PARTY with reasonable access to the policies, procedures and protocols used for purposes of fulfilling its obligations under this Agreement and any other documents that may be relevant.

16. **Cooperation with Privacy Assessment or Audit.** Receiving Party will cooperate with any privacy assessment or audit conducted by the DISCLOSING PARTY or any third party retained by the DISCLOSING PARTY.

17. **Complaint by the DISCLOSING PARTY.** In the event that the DISCLOSING PARTY makes a complaint to Receiving Party in respect of Receiving Party's compliance with this Agreement, the Receiving Party shall, within a commercially reasonable period of time from receipt of the complaint, investigate the matter and provide the DISCLOSING PARTY with an oral report stating the cause of the deficiency, if any, and the steps taken to prevent a recurrence, if required. Within a further five business days, Receiving Party shall provide the DISCLOSING PARTY with a written report documenting the complaint, investigation, deficiency, if any, and the steps taken to prevent a recurrence, if required.

18. **Cooperation with Complaint to the DISCLOSING PARTY.** Receiving Party shall provide reasonable cooperation with the DISCLOSING PARTY in responding to any complaints about PHI that may relate to Receiving Party's obligations under this Agreement.

19. **Survival.** Receiving Party's obligations with respect to PHI shall survive the expiration or termination of this Agreement for any reason.